Mokopuna Māori

Executive Summary

Mokopuna are tāonga.

For generations, however, the Crown has used state care as a tool of colonisation, severing mokopuna from their whakapapa, eroding whānau, and undermining Māori sovereignty.

State care institutions have not protected our mokopuna. They have harmed them.

Residential facilities became sites of abuse, criminalisation, and gang recruitment. Foster care placements frequently pushed mokopuna into survival behaviours.

One in three children placed in residential care later entered the prison system.

Under Te Tiriti o Waitangi, the Crown has no mandate to remove mokopuna Māori from their whānau, hapū, and iwi and place them into systems that repeatedly breach their collective mana; both the child and the whānau, hapū and iwi they belong to.

The care, protection, and nurturing of mokopuna Māori must be reclaimed by whānau Māori.

Context

In 2024, the Crown formally apologised to the more than 200,000 survivors of abuse in state and faith-based care from 1950 to 2019. Mokopuna Māori are disproportionately represented among survivors. Recent data shows that between 65-70% of children abused in state care are Māori.

Today, nearly 70% of children in state care are Māori.

Multiple reports and inquiries have confirmed that institutional and structural racism across government agencies has driven the historical and ongoing over-representation of mokopuna Māori in state care.

In 2021, the Waitangi Tribunal found that the Crown's removal of mokopuna Māori into state care constitutes a profound and ongoing breach of Te Tiriti o Waitangi.

The Tribunal was unequivocal: reforming Oranga Tamariki from within will fail another generation.

Our Position

Care and protection are whakapapa responsibilities. Whānau, hapū, and iwi are best placed to care for their own mokopuna, grounded in whanaungatanga, tikanga, and collective responsibility.

The continued removal of mokopuna Māori into state care is a violation of Te Tiriti, a breach of mana, and a denial of tino rangatiratanga.

The solution does not lie in fixing a broken system. It lies in replacing it.

Te Pāti Māori will...

1.End State Care of Mokopuna Māori

- Commit to the end of state care for mokopuna Māori
- Replace state care with Māori-led, whakapapa-based care systems
- Restore whānau authority over the care and protection of mokopuna.

2. Establish an Independent Mokopuna Māori Authority

- Introduce enabling legislation to partially repeal the Oranga Tamariki Act.
- Create a Mokopuna Māori Act establishing an independent Mokopuna Māori Authority.
- Give effect to the Waitangi Tribunal's recommendation for a Māori Transition Authority.

Functions of the Authority will include:

- Asserting and protecting rights guaranteed under He Whakaputanga and Te Tiriti o Waitangi.
- Acting as the primary national agency for the care and protection of mokopuna Māori.
- Prioritising whakapapa, whanaungatanga, tikanga, reo, and kawa Māori.
- Designing care pathways that sit outside punitive care-and-protection frameworks.
- The Authority will not be constrained by Oranga Tamariki policy settings and will be free to support whānau in ways that prevent harm before state intervention occurs.

3. Implement a Transition Plan Away from Oranga Tamariki

- Develop a three-year transition plan to shift power, funding, and workforce from Oranga Tamariki to the Mokopuna Māori Authority.
- Oversight provided by the inaugural Authority board and the responsible Minister.

Immediate reforms during transition will include:

- Reinstate Section 7AA into the Oranga Tamariki Act.
- Ending the practice of uplifting pēpi and mokopuna without whānau, hapū, and iwi consent.
- Closing youth care and protection residences.
- Reviewing and reforming the Child Protection Protocol.
- Mandatory de-escalation and use-of-force training.

4. Reallocate Funding to Māori Control

- Reallocate 70% of Oranga Tamariki's annual budget; approximately $1 billion per annum; to the Mokopuna Māori Authority.
- Align funding with responsibility, authority, and outcomes.
- Ensure resourcing reflects the proportion of mokopuna Māori currently in state care.

5. Establish a National Mokopuna Māori Partnership Network

- Require the Authority to build a partnership network across hapū, iwi, and Māori organisations.
- Ensure mokopuna remain connected to their whakapapa, whenua, and people.
- Partner with urban Māori organisations and survivors of state care.
- Support whakapapa-appropriate care and protection arrangements.
- This network recognises that mokopuna Māori experience the sharpest end of disconnection; and that reconnection is essential to wellbeing.

6. Implement all Whanaketia recommendations

- We will implement all 138 recommendations from the Royal Commission of Inquiry into Abuse in Care.

7. Empowering the Rights of Mokopuna

- No decision made by government undermines the safety of our mokopuna, and their rights to access their language and culture, the best standard of health, education, to have their needs met, and to have a voice in policies that affect them.
- We will ensure that all legislation and policy decisions uphold the mana and special rights of mokopuna to live their best lives free from harm.
- These rights are derived from whakapapa and enshrined He Whakaputanga, Te Tiriti o Waitangi, and the United Nations Children's Convention.

Our Commitment

Te Pāti Māori is committed to a future where mokopuna Māori are raised with love, safety, identity, and belonging. State care has failed our mokopuna. Māori solutions will not.